

		enforcement of the Arbitration Agreement in her Opposition, she only contended that she did not execute the Arbitration Agreement. The Court vacates the Case Management Conference and sets an ADR Review Hearing for 10/23/2025 at 1:30 p.m. <i>Moving Party is to give notice.</i>
104	Starbuzz Tobacco, Inc. vs. Abboud 23-01303979	Plaintiff/Cross-Defendant Starbuzz Tobacco, Inc. moves to compel Defendant/Cross-Complainant Reprise Trading, Inc. and Defendant Christopher Abboud to serve supplemental responses to Plaintiff's first set of Demands for Production of Documents. On 3/20/25, the Court denied Defendants' motion for relief from waiver of objections as to the Demands for Production of Documents, with the exception that tax records need not be produced. (ROA No. 221.) After the Court's ruling, Defendants served supplemental responses to the Demands on 4/4/25 and argue that the Motions should now be denied as moot. Defendants' supplemental responses to Nos. 4 and 26 do not include any objections. Further, Plaintiff represents that the supplemental response to No. 31 is sufficient. Thus, the Motions as to those demands are DENIED. However, in response to No. 32, Reprise continues to assert objections based on privacy. This demand does not seek any tax documents. It seeks "income statements, balance sheets, and a general ledger for Reprise. On March 20, 2025, the Court ordered that tax records do not need to be provided. The request does not seek "tax records." Therefore, the Court finds Reprise's continued assertion of objections to be unwarranted. Further, Reprise represents that responsive documents are believed to be in possession of its Certified Public Accountant. This representation of inability to comply because the documents are not within Reprise's possession is disingenuous. Even if Reprise does not have its own copies of the documents and those copies are in the possession of its CPA, Reprise has custody and control over those documents and can obtain them from its CPA for production.

		Therefore, the Court ORDERS Reprise to provide further supplemental response to No. 32 and produce further documents within 15 days. (Code Civ. Proc., § 2031.310(a).) Plaintiff's request for monetary sanctions against Reprise is GRANTED in the amount of \$2,000.00. (Code Civ. Proc., § 2031.310(h).) Plaintiff's request for monetary sanctions against Abboud is DENIED, as the Court finds that Abboud's delay in providing supplemental responses until after a ruling on the motion for relief from waiver of objections was issued was substantially justified. <i>Plaintiff to give notice.</i>
105	Rodriguez vs. BP America, Inc 22-01292742	Defendants, BP America, Inc. and Ali Afghani ("Defendants"), move for an order compelling Plaintiff, Jesus Hiram Rodriguez, to provide further responses to Form Interrogatories, Set One; Special Interrogatories, Set One; and Request for Production of Documents, Set One. The notice of motion does not identify the discovery at issue by number. "A motion concerning interrogatories, inspection demands, or admission requests must identify the interrogatories, demands, or requests by set and number." (California Rules of Court, rule 3.1345(d).) However, Defendants have filed the requisite separate statement which indicates the discovery at issue is as follows: Form Interrogatories, Set One. Nos. 8.1, 8.2, 8.3, 8.4, 8.5, 8.6, 8.7, and 8.8; Special Interrogatories, Set One, Nos. 8, 9, 11, 26, and 29, and 32; and Request for Production of Documents, Nos. 2, 4, 5, 23, 24, 25, 26, 28, 29, 30, and 31. <i>Timeliness</i> With respect to the timing requirement, Code of Civil Procedure section 2030.300, subdivision (c), specifically provides: "Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response